



CRWP-6521-2026

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH**

(107)

CRWP-6521-2026.

Date of Decision:-01.06.2026.

Siya Kumari and another

.....Petitioners

Versus

State of Punjab and others

.....Respondents

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Mr. Manoj R. Sharma, Advocate for the
petitioners (through VC).

ALOK JAIN, J. (Oral)

1. The present petition has been filed under Article 226 of the Constitution of India for issuance of an appropriate writ in the nature of mandamus directing the official respondents to protect the life and liberty of the petitioners at the hands of private respondents.

2. Learned counsel for the petitioners, *inter-alia*, contends that both the petitioners who are adults have got married on 24.05.2026 and due to the threat being faced from the private respondents, they have moved a representation dated **26.05.2026 (Annexure P-5)**.

3. Notice of motion to the official respondents.

4. Mr. Amandeep Singh Samra, AAG, Punjab, accepts notice on behalf of the official respondents.



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5. The present petition is being considered only for the purpose of protection of life and liberty of the petitioners and the filing, pendency or the orders passed by this Court in this petition shall neither be construed as any stamp of the Court qua the promiscuous relationship/live-in-relationship/marriage of the petitioners nor shall be relied upon by any authority in any proceedings initiated against the petitioners under any other provision of law, hence, there is no necessity to serve the private respondent(s) or to seek a reply from them.

6. In view of the above, the petition is disposed of with a direction to respondent No.2-Senior Superintendent of Police, Pathankot, to take into consideration the request of the petitioners made vide representation dated **26.05.2026 (Annexure P-5)** and take appropriate action, in accordance with law and in terms of the guidelines/SOPs issued vide judgment passed by a Coordinate Bench of this Court in **CRWP-12562-2023** dated 14.06.2024.

7. It is made clear to the petitioners that, in case, any averments made in this petition or in the representation dated **26.05.2026 (Annexure P-5)** are found to be incorrect, the State authorities are directed to take appropriate action, in accordance with law.

8. However, since this petition is being disposed of in *limine*, therefore, copy of the complete paper book be sent through registered post to respondent No.4 - father of petitioner No.1.

9. Although, the State is duty bound to protect its citizens, however, in case, there is any criminal record of the petitioners, the present

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order shall not be an *alibi* or an impediment against the authorities to proceed in accordance with law and the above order is subject to cross verification of the antecedents of the petitioners. Furthermore, it will be the responsibility of the concerned SHO to verify the original documents demonstrating the correct age and residential address of the petitioners before considering their representation after getting the same counter-checked by the private respondents.

(ALOK JAIN)
JUDGE

June 01, 2026.

S. Sethi

Whether speaking/reasoned:- Yes/No

Whether Reportable:- Yes/No